

CANADA'S ROLE IN INTERNATIONAL LAW AND WAR CRIMES IN GAZA

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WHAT IS INTERNATIONAL LAW?

International law refers to the legal responsibility of states in dealing with each other, while also respecting each states legal boundaries. Some of the issues that international law deals with include human rights, international crime, refugees, trade deals, conduct of war and space among many others. Ofcourse these are not fixed, and are subject to change depending on circumstances. This makes it quite difficult since different states enforce different laws on a similar subject based on its societal structure and acceptance. This is why different bodies of governance exist, such as the United Nations, International Criminal Court (ICC). Such bodies were formed after World War II, to ensure war crimes like those were never repeated again and issues of human rights and disputes can be dealt with, on an international level, efficiently.



Pictures from the first General Assembly of the United Nations, and here the scope and purpose of the United Nations was defined. The first president elected was also done in this meeting <https://media.un.org/photo/en/collections/united-nations-history/first-session-general-assembly?page=1>

HOW IS INTERNATIONAL LAW STRUCTURED?

In international law no state holds ultimate authority, which means any decision is a result of multiple consensus. Hence if any issue arises, dispute resolution panels exist, where multiple representatives, such as the states involved in the dispute and delegations from the governing body (generally a neutral third party) try to come to a reasonable conclusion. Once this happens, countries decide if they want to take the matter to the International Court of Justice through a treaty or a unilateral or a multilateral declaration. Once this happens, the court holds hearing and allows the

parties to present their cases and evidence and eventually a verdict is passed. Note that unlike national or provincial courts, this does not present a verdict as quickly.

CONS

Although international law sounds intimidating, it's much less powerful than national law. Mainly because unlike national law systems which have systems of enforcement such as the police, international law systems don't have enforcement. This really means that a verdict would require voluntary cooperation from the convicted individual or states. For this reason, to force involved parties to comply, many horizontal laws, like treaties, contain provisions that require the parties to submit to a treaty-created dispute resolution panel or other neutral tribunals.

However, there can be pressure applied to a state or individual to comply with international verdicts. Allying states may impose a variety of sanctions, especially economic ones to put the state into a dangerous decision between economic welfare or compliance.

HOW DOES CANADA TIE INTO INTERNATIONAL LAW SYSTEMS?

Canada happens to be a very strong advocate of globalization and international systems. They are one of the founding members of the UN and actively engages in the General Assembly which enforces international discussions and law. They have also always advocated for human rights (ignoring their handling of indigenous communities within) and have been a vocal supporter of ICC from the start. So it comes to no surprise that they allow international law to impact the states functioning, with being one of the 184 countries that consider themselves bound by the principles, customs and standards of international law. Canada's obligations, rights and responsibilities in international law may be found principally in treaties, in the conduct and practice of states, and to a lesser extent in general principles of law, in judicial decisions, in writings of highly respected scholars and in certain UN General Assembly resolutions, and this is accepted in Canadian courts as normal.

For instance, the trade agreements that the Government of Canada signs with other

nations may provide Canadian businesses with access to new products and markets. Another example could be the tariff system introduced in international law, heavily affecting Canadian markets. So the affects of these laws don't remain limited at a federal level, but affect all the residents in the country.

Canada also has signed a number of treaties with countries. Treaties are effectively agreements which are signed by the executive branch of government (i.e. the Government of Canada) with other states and subsequently ratified so as to create binding legal obligations on Canada as a matter of international law. However, signature and ratification are not sufficient for the treaty to apply as a matter of domestic law. The treaty must undergo a process of "transformation", whereby the treaty is implemented, generally by means of legislation in the relevant Canadian legislature, for it to form part of Canada's domestic law.

EXAMPLES OF CANADIAN INVOLVEMENT IN INTERNATIONAL LAW

International law as mentioned previously, does not involve just state-to-state interactions, but also can involve individuals subject to international law.

The **case of Nevsun v Araya** originated in the courts of British Columbia. Three Eritrean nationals sued Nevsun Resources Ltd, a B.C.-incorporated company, alleging that the company was complicit in human rights violations committed by the Eritrean state and military which occurred at the Bisha mine in Eritrea. Nevsun raised a number of jurisdictional objections against the claim in the lower courts, which were dismissed by the Supreme Court of British Columbia and subsequently the Court of Appeal of British Columbia. Nevsun appealed to the Supreme Court of Canada, who heard oral arguments earlier this year in January. The court judged that customary international law could be a basis for liability. This was a historic case in Canada, primarily because customary international law was considered part of Canadian law. Nevsun tried to appeal the court's decision to allow the lawsuit by saying that the "Act of State Doctrine" (which basically prevents the judgement of foreign governments. But their appeal was reject and the lawsuit proceeded. Eventually the plaintiffs (the three workers) won however the terms of settlement remain

confidential.

Another example includes trade agreements and international treaties. In November 30, 2018, Canada, the United States and Mexico signed a new multilateral trade agreement which is intended to replace the North America Free Trade Agreement (NAFTA). NAFTA was basically a free trade agreement between USA, Canada and the Mexico signed back in 1994 which would promote business between the nations and remove trade barriers. Although many of the NAFTA provisions remain intact, the treaty overhauls a number of rules, including in relation to regional content and labour standards requirements in automobile supply chains, access to the Canadian dairy market, among others. Additionally, CUSMA completely rewrites the investor-state dispute settlement (ISDS) mechanism previously established in Chapter 11 of NAFTA, replacing it with a patchwork of bilateral dispute resolution mechanisms.

EXTRADITION ACT

In Canada, we have an Extradition Act which governs the extradition of persons to and from this country and various states listed in the legislation. The other states named in the Extradition Act are mostly other Commonwealth countries, as well as some of the international criminal tribunals such as the International Criminal Court. We have also entered into separate extradition treaties with a number of other governments. In most situations, extradition of someone from Canada to another country is possible where the offence giving rise to the foreign request is relatively serious and would also be a crime if committed in Canada. The process involves both our federal government officials and our courts: the Minister of Justice commences the process and brings the matter before a judge, who considers whether the legal test for extradition is satisfied. If the court finds in favour of extradition, the case is sent back to the Minister for the final decision about whether Canada will surrender the individual. There are some circumstances when the Minister might refuse, such as the involvement of a death penalty (which does not align with Canada's norms of justice). If extradition is allowed, arrangements are then made to physically remove the person from Canada and transfer him into the custody of the foreign authorities to be dealt with according to law

Perhaps the best-known recent extradition case is that of **Luka Magnotta**, a Canadian

who fled to Germany after killing and dismembering another man in Ottawa. He was extradited from Germany back to Canada. The trial took place in Montreal even though he had committed the murder in Germany and within a year of the trial he was sentenced to lifelong prison. Germany's cooperation ensured that criminals are not let loose. He was arrested by German police and sent over to Canada.

We also have made international treaties whereby people imprisoned in other countries (of the treaty) can be brought back to the country of origin to continue their punishment. The best known example of this is the Canada-United States treaty, but we have also entered into similar agreements with a number of other nations, including Morocco, Argentina, France, Peru and Thailand. The agreements are reciprocal, which means that Canadians imprisoned in such a country can apply to be transferred to Canada to complete their sentences, and foreign nationals of such a nation can apply to our government to be allowed to return home to complete their punishment

An example includes the case of **Omar Khadr**, the young Canadian man who was held by the United States for many years in the military complex at Guantanamo Bay, Cuba, before being sentenced for offences to which he pleaded guilty. After being sentenced, Mr. Khadr requested, and was ultimately allowed, to be returned to Canada to finish serving his sentence in this country

CRIMES AGAINST HUMANITY AND WARTIMES ACT

Another law that ties in Canadian and international justice is the Crimes Against Humanity and Wartimes Act. In 2000, Canadian law was changed to incorporate and implement our obligations arising upon our adopting the Rome Statute of the International Criminal Court. As part of our commitments, Parliament enacted the Crimes against Humanity and War Crimes Act, which now spells out the offences in question: genocide, war crimes, and crimes against humanity – all of these are given detailed definitions in the Rome Statute, and are now adopted into Canadian law. There is also the inclusion of prosecution of crimes committed both within and outside Canada, and how to deal against people who interfere with course of international justice.

Prosecutions in Canada under this legislation are very rare; in fact, it seems there has thus far been only two, both involving Rwandans who allegedly took part in the 1994 genocide in that country. In 2009, Desire Munyaneza was convicted in Quebec for crimes defined in this Act and was sentenced to life imprisonment. He was punished in Canada for his acts of genocide in Rwanda, in a Canadian court. This is very important for the rest of the research. This was the first use of this act under Canadian Law and set a landmark in overcoming genocide and war crimes globally.

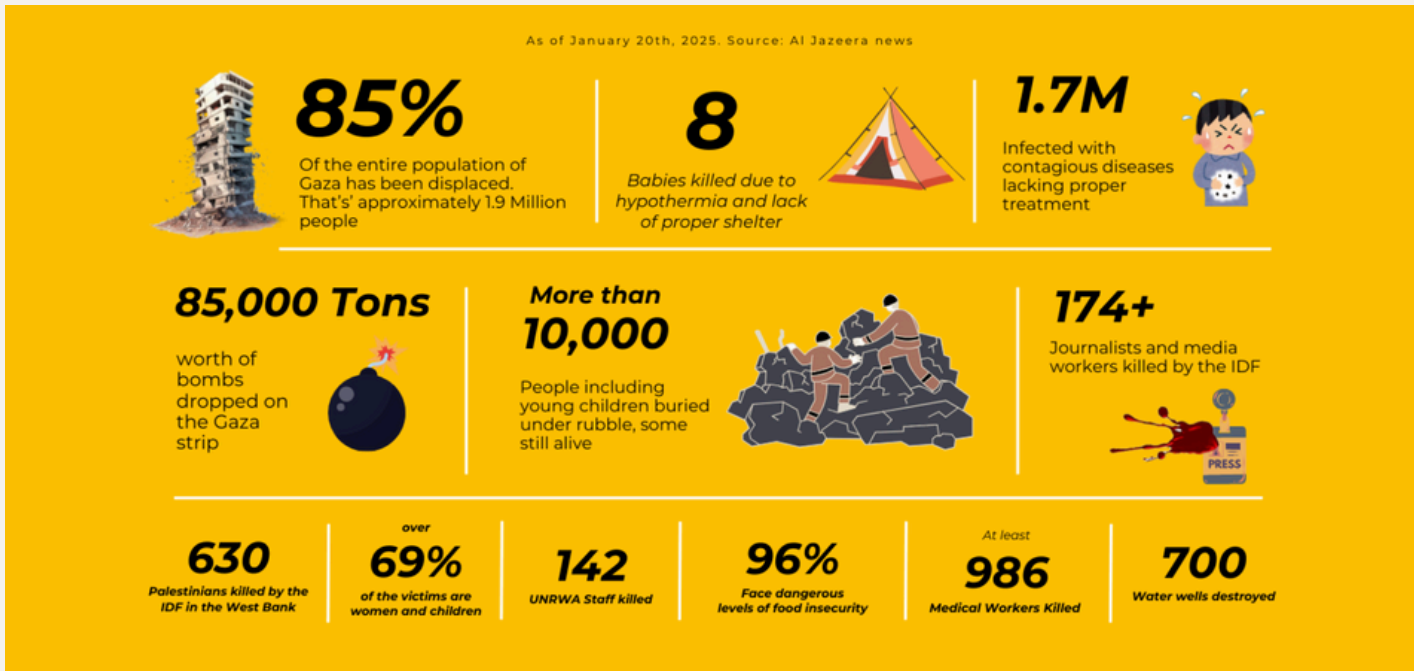
In 2013, an Ontario court acquitted Jacques Mungwarere (also involved in the genocide) because the judge could not be sure the evidence called against him was sufficiently reliable. This case highlighted the challenges in prosecuting international war crimes since they relied on witnesses from different jurisdiction. However, it showed Canada's seriousness in dealing with individuals who are charged with oppression of human rights. A number of other cases which might have been brought under the Crimes against Humanity and War Crimes Act have been prosecuted instead under our Criminal Code, which contains provisions also applicable in situations which could amount to war crimes or crimes against humanity.

HOW INTERNATIONAL LAW HAS CHANGED CANADIAN LAW

Canadian courts have often turned to international human rights treaties and agreements in interpreting the scope of particular rights in Canadian law. In 1986, for example, when discussing the meaning and impact of the constitutional enshrinement of the presumption of innocence, the Supreme Court of Canada noted its inclusion in the 1948 Universal Declaration of Human Rights, and in the 1966 International Covenant on Civil and Political Rights. Similarly, when reviewing the constitutionality of some of Canada's laws against hate speech, the Supreme Court cited various international instruments and agreements in support of its conclusion that restricting and punishing racist and discriminatory commentary is a sufficiently important societal objective as to justify the restriction and limitation of a core fundamental freedom (the freedom of speech protected by s. 2 of the Charter). Other areas in which international human rights agreements have been mentioned and referred to are as diverse as labour rights (including the right to strike); the rights of

accused persons in criminal proceedings to have the assistance of an interpreter; and the freedom of religion.

THE HUMANITARIAN SITUATION IN GAZA AND CANADA'S STANCE



Statistics of the atrocities in Gaza <https://www.justiceforallcanada.org/palestine.html>

The above picture shows the damage on Gaza till January 2025. Up till now, over 50000 people have been killed with a majority being women and children. Canada has acknowledged the situation, “The humanitarian situation in Gaza is horrific and continues to worsen. We mourn all civilians killed since October 7. The scale of civilian casualties is heartbreaking and unacceptable, all actors must comply with international law”. They also acknowledge Palestinian right to self recognition, “Canada recognizes the Palestinian right to self-determination and supports the creation of a sovereign, independent, viable, democratic, and territorially contiguous Palestinian state. Canada is prepared to recognize a Palestinian state at the time most conducive to lasting peace”. But Canada still does not recognize Palestine as a state, which is problematic and encourages the colonizers to continue their oppression. What is happening in Gaza is clearly a demonstration of genocide, acknowledged by many countries, credible people, humanitarian institutions and the ICJ has found substantial evidence to call the situation in Gaza a genocide. However, Canadian PM Mark Carney has not acknowledged this saying condition for a state “do not exist”.

REMEDIES

According to Noor Badri, “David R. Boyd, the UN special rapporteur for human rights and the environment, noted that Israel's military operations have resulted in massive carbon pollution, contaminating air, water, and soil with toxic substances. These operations have destroyed Gaza's water and sanitation infrastructure, exacerbating the already dire water crisis.” (University of California Global Health Institute). The situation in Gaza has severe repercussions everywhere, even in Canada. It affects the climate poorly, with the carpet bombing permanently damaging ecosystems in Palestine. Climate change is further sped up which concerns Canada because of its leading role against climate change. Along with that, not addressing issues of genocide and being on standby allows further perpetrations in the future, because neutrality always sides with the oppressors. For Canada to protect itself from similar instances and receive support from its allies, it must also take a stance against oppression worldwide. And even though a lot of Canada's actions depend on the American standpoint, making bold moves in its foreign policy would allow Canada to present a bolder stance and form better bonds with many nations.

In May 2024, the ICC (International Criminal Court) Chief Prosecutor submitted an application for warrants of arrest for Israel's Prime Minister Benjamin Netanyahu and the defense minister at the time, Yoav Gallant. These were issued for their crimes against humanity and war crimes by deliberately targeting innocent civilians. With criminals in positions of power, Canada has a role to play as an ally of Israel. This is to not support Netanyahu, because Canada's relation is with the Israeli people and not with criminals and hence should take strong actions. Applying sanctions and pulling out of providing support to Israel would hinder Israel's strength in the region and allow Canada a leverage over negotiations for a ceasefire, something which Canada has taken little to no initiative towards. They could also prosecute criminals domestically, arresting IDF soldiers on leave to Canada.

Since the ICJ is quite weak and cannot enforce law directly, in a special situation like this, Canada could support with providing enforcement to help bring war criminals under justice (since Netanyahu and Galant do not abide by the ICJ's rulings and slander it). Recently, IDF soldiers fired shots near innocent Canadian diplomats (May 21) and this is an example of what is to happen if issues are not resolved.

Addressing genocide and helping those in Gaza is not only about Palestinian lives but also Canadian ones. It is the duty of the government to help those in danger, and addressing issues in Gaza and taking bolder stances from the government will allow change to come forth.

CONCLUSION

Unlike many countries of the world, Canada has been a great force in integration and globalization. From establishing international bodies to hold states accountable to integrating international and domestic law systems, Canada has set examples for many countries around the world, even leading the United States in these aspects. International Law has proved effective in Canada's role to hold criminals all around the world accountable which has led to them being applied in the country like the cases of Nevsun and Omar Khadr. So when now we have an ongoing genocide, Canada's silence is quite deafening to many people considering that Canada also funds the genocide. We have many system in place to regulate the oppression, and yet Canada has acted ignorant on the humanitarian situation in Gaza, leaving a large part of the population advocating for the wrong causes. For public consensus to change, it is the government's duty to raise awareness and encourage public discussions. But first, they must acknowledge the issues. Being heavily involved in international law vocally comes to no help when there is no application. Hence, it is necessary to do whatever the government can and make efforts to stop the genocide, or else future generations will live in a society with oppression being acceptable and justice being incredible.

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